


YOUR SEVERANCE REPORT

# Your offer, organized.

We read your letter and your contract, checked them against the law, and estimated the range a case like yours can reach. Use it to understand your offer and prepare. **It's an estimate, not a promise**; only a lawyer can confirm your exact number.

DO-IT-YOURSELF · NOT LEGAL ADVICE · YOU'RE IN CONTROL

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PREPARED FOR
**Gurpreet Sandhu**

ROLE
**Technical / skilled trade · 3 years of service**

WHERE
**Ontario**

DATE
**November 5, 2026**

TEST REPORT · fictional person and company · **For information only** — not legal advice · Yours to keep and use

General information, not legal advice. We've done our best to make this clear and accurate, but please check the details before you act. If anything feels unclear, a professional can help.

# What's in *this report.*

Read it top to bottom, or jump to the page you need.


**1 Where you stand** — pages 4–9
Your offer checked against the rules, and what lines up.

**2 Two numbers to understand** — pages 10–11
The legal minimum, and what a court might award.

**3 What's in your letter and contract** — pages 12–13
Clause by clause, with sources.

**4 Questions to prepare** — pages 14–16
Calm questions for HR, and this week's steps.

**5 Your next step** — pages 17–18
The three paths, side by side.

**6 Where every number comes from** — page 19
Every number and rule, with its official source.

**7 Talking to a lawyer** — page 20
How to hand this report over, and your report ID.


**How to read the colours:** they always mean the same thing.

Green · lines up | Red · doesn't line up | Yellow · ask about it | Gray · good to know | Dark blue · your key number

This report checks your offer against Ontario's rules and gives you an **estimated range**: the legal minimum (a fixed rule) up to what courts often award for someone like you (an estimate). It doesn't promise an amount or tell you what to do.

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# The important stuff — *please read.*

Straight talk about what this pack is, what it isn't, and where the responsibility sits.

### 1 · This is a do-it-yourself report

This is designed for you to use **on your own**. It organizes your offer and prepares questions — it is **not** advice a lawyer would give you after reviewing your full situation, and a lawyer may see things very differently. Anything you choose to send or say, you're doing **on your own initiative**.

### 2 · Information, not legal advice

This pack gives you information to help you prepare. It does **not** make FairExit your lawyer and does not create a lawyer–client relationship. Nothing here is legal advice.

### 3 · We use AI — mistakes can happen

The explanations, notes, and draft questions are produced by **software and AI** from general rules and the details you gave us. **AI can be wrong, details can be misread, and laws change**. It is up to you to read everything carefully and confirm every fact is correct before you rely on it.

### 4 · No guarantee — and the decisions are yours

Any general information here can be wrong, and outcomes depend on your paperwork and your situation. **FairExit accepts no responsibility for what you send, say, or decide based on this report** — those choices are entirely yours. Deadlines to act can be short; confirm them with a lawyer promptly.

### 5 · Only a lawyer can give you the exact answer

We provide clarity in an organized way. **Only a licensed employment lawyer** can confirm what you're truly owed, review your real contract, and advise you. If anything feels urgent or serious — especially before you sign anything — speak to a lawyer. The first call is often free.

### 6 · Once a lawyer takes your case, follow them

Everything here is **general and organizational**. If you retain a lawyer, their advice **supersedes** anything in this report — follow your lawyer, not this document. **Do not rely on this report once you're working with a lawyer**.

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# 1

# Where you stand

Your offer, checked against the rules. What they offered, what the rules say, and what lines up and what doesn't. If you only read one section, read this one.

IN THIS SECTION

Your offer at a glance

Things they don't always tell you

Did they do it right?

Your estimated range

What lifts your range

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# Your offer, *at a glance.*

The short version before the detail.

Your offer of $3,000 is above the Employment Standards Act minimum of $577 (3 weeks of pay) and sits near the low end of our common-law estimate of $2,875 to $3,833. Your letter does not give a date to sign by, and the Employment Standards Act gives you 2 years to file a claim. Contract not added: both files you added look like blank sample templates, so this report is built only on the details you confirmed. Adding your real severance letter and the agreement you signed when you were hired would make this report much more exact.

The file added as your employment contract is a blank employment verification letter template, not a contract, so every check that depends on your contract is marked as a question.

| | |
|---|---|
| Employer | **Lakeshore Precision Components** |
| Years of service | **3 years** |
| Your pay | **$10,000** |
| They offered | **$3,000** |
| Legal minimum | **$577** |
| Decide by | **Oct 5, 5 p.m.** |

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# Things they don't always *tell you.*

You have a date to sign by. Here's what the official rules say, so you can decide on your timeline, not theirs. Every point links to a government source.

| WHAT PEOPLE OFTEN THINK | WHAT THE OFFICIAL RULES SAY |
|---|---|
| **"Everyone in Ontario gets severance pay on top of notice."** | The separate severance pay layer only applies after 5 or more years of service, and only with a payroll of $2.5 million or more or 50 or more people cut in a closure. Source: CA-ON-S2 |
| **"A layoff is always temporary."** | A layoff only stays temporary for a limited time. After that it is a termination, and if your contract never allowed layoffs, a layoff can itself be a termination. Source: CA-ON-S1 |
| **"If one part of a termination clause is wrong, the rest still counts."** | In Ontario, if any part of the clause breaks the Employment Standards Act, the whole clause fails. Source: CA-ON-S5 |
| **"Taking separation pay delays EI."** | For claims from March 30, 2025 to October 9, 2027, separation pay is not deducted and the EI waiting period is waived. Source: CA-ON-S6 |

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# Did they do it *right?*

Your letter, your contract and the rules, side by side. Green = it lines up. Red = it doesn't. Yellow = worth asking about.

1 LINE UP | 0 DON'T | 15 TO ASK ABOUT

| WHAT WE CHECKED | YOUR SEVERANCE LETTER SAYS | YOUR EMPLOYMENT CONTRACT SAYS | THE RULES SAY | DOES IT LINE UP? |
|---|---|---|---|---|
| **Legal minimum notice** | The number of notice weeks is not mentioned. The offer is $3,000. | Not added | Employment Standards Act: 3 weeks of notice or pay for 3 or more years of service. At about $192 a week of base pay, that is $577. | **Lines up** The $3,000 offer is above the $577 legal minimum. |
| **Notice you already worked** | 0 weeks of working notice | Not added | Employment Standards Act notice 3 weeks - 0 weeks you worked = 3 weeks still owed as pay. | **Good to know** You did not work any of your notice, so all 3 weeks are owed as pay. |
| **Severance pay (second layer)** | Not mentioned | Not added | Ontario adds severance pay of 1 week per year of service, up to 26 weeks, only after 5 or more years of service and only if the payroll is $2.5 million or more or 50 or more people are cut in a closure. | **Good to know** With 3 years of service, this second layer does not apply to you, even though you are not sure about the payroll. |
| **Group layoff (50 or more people)** | Not mentioned | Not added | If 50 or more people at one workplace lose their jobs within 4 weeks, everyone gets at least 8 weeks of notice, rising to 12 or 16 weeks for larger cuts, whatever their years of service. | **Ask about this** If this was part of a large cut, your minimum would be at least 8 weeks, not 3. Find out: ask HR in writing how many people lost their jobs. |
| **Layoff or end of job** | Your letter is titled as a termination and severance letter. You told us you were laid off. | Not added | A temporary layoff only stays temporary for 13 weeks in any 20 weeks (longer in some cases). Longer is a termination. If your contract never allowed layoffs, a layoff can itself be a termination. | **Ask about this** It matters whether this is a temporary layoff or a permanent end to your job. Find out: ask HR to confirm this in writing. |
| **Termination clause in your contract** | The letter refers to your agreement: "reviewed against the Ontario Employment Standards | Not added | In Ontario, if any part of a termination clause breaks the Employment Standards Act, the whole clause fails | **Ask about this** We cannot see your real contract, so we cannot tell |

| | | | | |
|---|---|---|---|---|
| | Act, 2000, your employment agreement, any applicable collective agreement" | | and the common-law range applies instead. | whether a clause limits you to the legal minimum. Find out: ask HR for a copy of the agreement you signed. |
| **Common-law estimate** | Offer of $3,000 | Not added | Our estimate is 3 to 5 months, or $2,875 to $3,833, based on your base pay. This is an estimate, not a legal amount. | **Good to know** The $3,000 offer is inside this estimate, near the low end. Whether this range applies depends on what your contract says. |
| **Your bonus** | Not mentioned | Not added | The legal minimum is based on base pay only. A bonus counts toward the common-law estimate only if it was paid most years. | **Ask about this** You said you get a bonus, but no document shows an amount, so the estimate uses base pay only. Find out: ask HR what bonus you were paid each year. |
| **Release** | "If this letter includes an offer that requires you to sign a release or other agreement" the release would be set out separately. No release terms are included. | Not added | No release terms are in front of us to compare. | **Ask about this** It is not clear whether you will be asked to sign a release to get the $3,000. Find out: ask HR in writing. |
| **Time to decide** | No date to sign by is mentioned. | Not added | You have 2 years from the breach to file a claim under the Employment Standards Act. | **Good to know** There is no signing deadline in your letter, and the legal window to file a claim is long. |
| **Last day** | November 13, 2026 | Not added | No rule applied here. | **Good to know** This is the last day of work you confirmed. |
| **Benefits** | Not mentioned | Not added | No rule applied here. | **Ask about this** The letter does not say when any benefits end. Find out: ask HR for this in writing. |
| **Vacation pay** | The letter mentions accrued vacation pay only. It does not say whether | Not added | No rule applied here. | **Ask about this** It is not clear how vacation pay is being handled. |

| | | | | |
|---|---|---|---|---|
| | vacation pay is added to your notice pay. | | | Find out: ask HR for this in writing. |
| **Job title** | Not mentioned | Not added | No rule applied here. | **Ask about this** Neither document shows your job title. Find out: ask HR to confirm it in writing. |
| **Pay used for the numbers** | Not mentioned | Not added | All numbers use the yearly base pay you gave: $10,000, or about $192 a week. | **Good to know** If $10,000 was not your yearly base pay, every number in this report will change. |
| **Employment Insurance (EI)** | Not mentioned | Not added | For EI claims from March 30, 2025 to October 9, 2027, a temporary federal measure means separation pay is not deducted and the waiting period is waived. | **Good to know** You can apply for EI as soon as you stop working, and the $3,000 offer would not reduce it under this measure. |

Checked against Ontario's Employment Standards Act and court decisions. Sources are on the Sources page.

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# Your estimated *range.*

The legal minimum is a fixed rule. The top is our estimate of what a court might award, and only applies if your contract doesn't validly limit you.

ESTIMATED SEVERANCE RANGE

## $577 – $3,833

Floor = 3 weeks notice + severance pay + vacation pay. Top = about 3–5 months of base pay, which applies only if your contract doesn't validly limit you. Your offer is **near the floor**.



### Your offer — on the high end

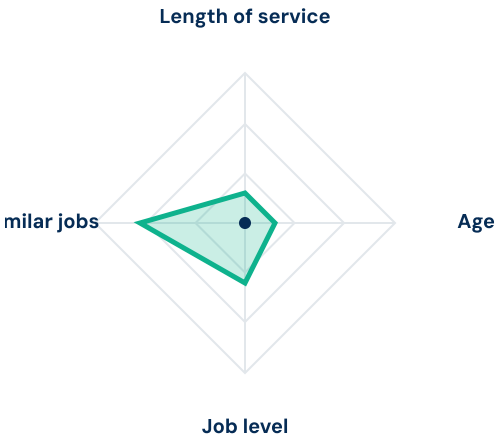



**This is an estimate, not a promise.** Base pay only: a bonus and benefits during the notice period could add to it. Pay from a new job usually reduces the part above the minimum. Only a lawyer can confirm your number.

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# What lifts your *range.*

Courts look at four things when they decide how much notice is fair. Your pay isn't one of them: it turns the months into dollars.




Centre = works a little in your favour · edge = works a lot

- **Length of service: 3 years.** 3 years of service is a shorter time, which keeps the estimate lower.
- **Age: 23.** At 23, age adds little to the estimate.
- **Job level: Technical / skilled trade.** Technical and skilled trade work can take some time to replace, which adds a little.
- **Similar jobs nearby.** You said there are few similar jobs nearby, which can mean a longer search and pushes the estimate up.

Your pay: $10,000 a year. It turns the months into dollars.

## What your shape says

Your chart reaches furthest on **age and length of service**, two of the heaviest factors. That is why the estimate reaches toward **$3,833**.

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# 2

# Two numbers to understand

There are two numbers in your situation: the legal minimum, a fixed rule you can check yourself, and what a court might award, which is our estimate. This section explains the difference in plain words.

IN THIS SECTION

The floor, and the range above it

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# The floor — and *the range above it.*

One number is a rule. The other is an estimate. Here is how each is worked out.

### 1 · The legal minimum (a rule you can check)

- Termination pay: 3 weeks × weekly pay = $231 (Employment Standards Act)
- Severance pay: 14.5 weeks × weekly pay = $346
- Vacation pay on termination pay: 6% × termination pay = $1,038
- **Legal minimum: $577**

### 2 · What a court might award (our estimate)

If your contract doesn't validly limit you, a court can award "reasonable notice" **instead of** the minimum, based on four factors: length of service, age, job level and similar jobs nearby. For you: about **3–5 months of base pay, $2,875–$3,833**. Courts rarely go past about 24 months. Pay from a new job usually reduces the part above the minimum.

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3

# What's in your letter and contract

Clause by clause: what your documents say, what the rules say, and what it could mean for you. Each point shows where it comes from.

IN THIS SECTION

Release (if one is required)

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# The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

ASK ABOUT IT

## 1. Release (if one is required)

YOUR DOCUMENTS SAY

"If this letter includes an offer that requires you to sign a release or other agreement" the details would be set out separately.

WHAT THE RULES SAY

A release usually means you give up the right to claim more in exchange for the offer. Your letter does not include one, so you cannot yet see what you might be giving up.

**Why it matters:** A release usually means you give up the right to claim more in exchange for the offer. Your letter does not include one, so you cannot yet see what you might be giving up.

→ **Will I be asked to sign a release to get the $3,000, and can a lawyer review it before I sign?**

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# 4

# Questions to prepare

Calm questions you can send to HR, and practical steps for this week. You decide what to use and when.

IN THIS SECTION

Questions you might choose to ask

Take your time, and keep it simple

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# Questions you might *choose to ask.*

Neutral questions you might choose to send. You decide what to send. This is not a demand letter or legal advice.

To: **your HR contact (Denise Faulkner)** · Subject: **A few questions about my separation offer**

Hi Denise,

Thank you for the letter. Before I decide, I have a few questions.

- The letter mentions an employment agreement. Can you send me a copy of the agreement I signed when I was hired?
- Is this a temporary layoff or a permanent end to my job?
- Did 50 or more people at my workplace lose their jobs within the same 4 weeks?
- Will I be asked to sign a release to receive the $3,000? If so, can you send it to me in writing?
- What bonus was I paid each year, and will any bonus be paid for this year?
- When will my benefits end?
- How much accrued vacation pay will I receive, and is vacation pay included with my notice pay?
- Can you confirm my job title in writing?

Thank you,
Gurpreet Sandhu

**Why this works:** it asks clear questions instead of making claims, and asks for time to understand the offer.

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# Take your time — *and keep it simple.*

Two things that help: not rushing, and keeping your questions clear.

## You usually don't have to decide on the spot

Your letter gives a deadline for the extra $5,000. Asking to take the offer home to review it is a normal, complete answer. The $3,000 doesn't depend on signing.

## This week — the practical stuff

- **Apply for EI** within 4 weeks of your last day (canada.ca).
- **Write down every date:** sign-by Oct 5, 5 p.m., benefits Nov 23, 2-year claim limit.
- **Gather documents:** letter, contract, promotion note, bonus plan, pay stubs.
- **Check your final pay** for vacation pay.
- **Keep this report** to hand to a lawyer if you choose.

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# 5

# Your next step

The three paths side by side, where every number in this report comes from, and how to hand it to a lawyer if you want one.

IN THIS SECTION

You don't have to sign today

Where every number comes from

Talking to a lawyer

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# You don't have to *sign today.*

Here's how the three paths compare.

OPTION 1

## Sign as-is

Accept the offer and move on.

You get $3,000. It gives up the contract question.

OPTION 2

## Ask your questions

Use Section 4 to raise it yourself.

You run it yourself, using Section 4.

OPTION 3

## Talk to a lawyer

They can tell you what applies to you.

First call often free. The contract question needs a lawyer to read it.

**Honest note:** this report helps you ask the right questions. The contract question in Section 3 is one a lawyer needs to read your contract to answer.

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# Where every number *comes from.*

Ontario statute text checked on e-Laws and government guides.

| IN YOUR REPORT | HOW WE GOT IT | SOURCE |
|---|---|---|
| **Ontario Ministry of Labour** | Your guide to the ESA, Termination of employment (notice table, 3-month rule, mass termination, temporary layoff) | CA-ON-S1 https://www.ontario.ca/document/your-guide-employment-standards-act-0/termination-employment |
| **Ontario Ministry of Labour** | Your guide to the ESA, Severance pay (5 years, $2.5M payroll, 26-week cap, 7-day payment rule) | CA-ON-S2 https://www.ontario.ca/document/your-guide-employment-standards-act-0/severance-pay |
| **Ontario Ministry of Labour** | Your guide to the ESA, Filing a claim (2-year limit) | CA-ON-S4 https://www.ontario.ca/document/your-guide-employment-standards-act-0/filing-claim |
| **Supreme Court of Canada** | Docket 39326, Swegon North America Inc. v. Waksdale, leave to appeal dismissed 2021-01-14 (ONCA 391 stands) | CA-ON-S5 https://www.scc-csc.ca/case-dossier/info/dock-regi-eng.aspx?cas=39326 |
| **Government of Canada** | Temporary EI measures: separation earnings not deducted and waiting period waived for claims March 30, 2025 to October 9, 2027 | CA-ON-S6 https://www.canada.ca/en/services/benefits/ei/temporary-measures-for-major-economic-conditions.html |

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# One step, and a lawyer *takes it from here.*

If they push back, go quiet, or it feels like too much, you can hand this report to a lawyer.

### Show them this page.

Your report ID connects this report to FairExit, so they can see what you've already done. Connecting is free; you choose whether to go further.

Report ID **RPT-VS6ALW**




**For information only, not legal advice**, and not a lawyer–client relationship. How we're paid: lawyers pay a flat advertising fee; never a cut of your outcome.

Built on the details you confirmed on November 5, 2026. Rules as of October 25, 2026.

Rules as of October 25, 2026.

Report ID RPT-VS6ALW · generated November 5, 2026

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